Amendment to Resolution No. 7397 (Engelsman-La Forte)

Resolution to Authorize Independent Fact-Finding Regarding the Use of Non-PPS-Approved Messaging Platforms

RECITALS

WHEREAS, the Portland Public Schools Board of Education ("Board") has reviewed a Willamette Week news report alleging that the Superintendent and Portland Public Schools ("District") "leaders" used the Signal messaging application to communicate about District business, and has also reviewed images of Signal conversations with District leadership and individuals acting on behalf of the District that have been made publicly available online. Signal is an encrypted messaging platform with a disappearing-messages feature and is not a District-approved platform for official District communications;

WHEREAS, it is in the best interest of the District to independently determine whether, how, and why Signal or other non-District-approved messaging platforms were used to conduct District business by the Superintendent, current and/or former District leaders, and/or individuals or entities acting on behalf of the District;

WHEREAS, the Board has an oversight responsibility to ensure compliance with state statutes, District policies, public records requirements, and applicable records-retention laws;

RESOLUTION

NOW, THEREFORE, BE IT RESOLVED, the Board authorizes and directs the District to immediately retain independent legal counsel to advise and represent the Board, and to initiate and manage fact-finding with the following scope and to provide the results of the fact-finding directly and solely to the full Board by December 11, 2026. District General Counsel and District personnel shall provide necessary records, information, and logistical assistance but will not have authority to direct independent counsel or the fact-finding process.

BE IT FURTHER RESOLVED, that the fact-finding scope shall include the following:

1. **Use of messaging platforms:** Determine whether Signal or other non-PPS-approved messaging platforms were used to conduct District business

by the Superintendent and/or District leadership employees, or entities acting on behalf of the District; identify the individuals involved, relevant time periods, and purposes of the communications.

2. **Direction or authorization:** Determine whether the Superintendent and/or District leadership employees, or entities acting on behalf of the District directed employees to use non-PPS-approved messaging platforms to conduct District business.
3. **Records preservation:** Determine whether communications constituted public records or were otherwise subject to District records-retention requirements, whether they were appropriately preserved, and whether deleted, disappearing, or otherwise unavailable communications can be recovered.
4. **Policy and legal compliance:** Assess whether the practices identified were consistent with applicable statutes, District policies, administrative guidance, public records requirements, and records-retention obligations.

BE IT FURTHER RESOLVED, that the District shall immediately preserve all potentially relevant records and information, including electronic communications, attachments, screenshots, and metadata, and take reasonable steps to prevent further deletion or loss.

BE IT FURTHER RESOLVED, that independent counsel will establish a confidential channel and method for direct communication through which current and former employees and others with relevant information may voluntarily provide information and/or documents.

BE IT FURTHER RESOLVED, that independent counsel shall, at all times, report directly to the full Board and provide findings no later than December 11, 2026. If additional time is necessary, independent counsel shall provide an interim report that addresses the scope of fact-finding and proposed completion timeline by that date.